

**Before the
Federal Maritime Commission**

Docket No. 24-17

Samsung Electronics America, Inc.
v.
Orient Overseas Container Line, Limited,
and OOCL (Europe) Ltd.
v.
Samsung Electronics Company, Ltd.

RESPONDENTS' AMENDED COUNTERCLAIM

Pursuant to the Commission's Rules at 46 U.S.C. 502.62(b)(4), the Commission's Order Affirming Dismissal of Counterclaim dated July 30, 2025, and the Presiding Officer's Amended Scheduling Order dated August 5, 2025, Respondents allege the following Counterclaims against Complainant Samsung Electronics America, Inc. ("SEA") and state as follows:

I. PARTIES

1. Counter-Complainant Orient Overseas Container Line, Limited is a corporation engaged in business as an ocean common carrier that is organized and existing under the laws of Hong Kong with its principal place of business located at 25 Harbour Road, 31st Floor Harbour Centre, Wanchai, Hong Kong.

2. Counter-Complainant OOCL (Europe) Limited is a corporation engaged in business as an ocean common carrier that is organized and existing under the laws of the United Kingdom with its principal place of business located at OOCL House, Levington Park, Bridge Road, Levington Suffolk, IP10 0NE, United Kingdom.

3. Counter-Respondent Samsung Electronics America, Inc. (“Complainant/Counter-Respondent” or “SEA”), is a corporation organized and existing under the laws of the State of New York, with a principal place of business at 700 Sylvan Ave., Englewood Cliffs, New Jersey.

4. Samsung Electronics Company, Ltd. (“Samsung”), a corporation engaged in the global electronics business that is organized and existing under the laws of South Korea, with its principal place of business located at 129, Samseong-ro, Yeongtong-gu, Suwonsi, Gyeonggi-do (Maetan-dong) Seoul, 16677, Republic of Korea.

5. Upon information and belief, the Complainant/Counter-Respondent, SEA is a wholly owned subsidiary of Samsung.

II. JURISDICTION

6. The FMC has jurisdiction over this proceeding pursuant to the Shipping Act, including 46 U.S.C. § 41301 and 46 U.S.C. § 41102(a).

7. Complainant/Counter-Respondent is a “person” as that term is used in 46 U.S.C. § 41102(a), which provides the FMC with both subject matter jurisdiction and personal jurisdiction over Complainant/Counter-Respondent.

III. FACTUAL ALLEGATIONS

A. Service Contracts with Samsung and SEA

8. In 2021 and 2022, Samsung invited OOCL to submit proposals for the transport of Samsung's cargoes and transmitted documents to OOCL entitled 2021 Request for Quotations (“RFQ”) for Ocean Freight and 2022 RFQ for Ocean Freight (collectively, the “Samsung RFQs”) which described the terms and conditions which OOCL was required to meet in the event Samsung accepted OOCL’s proposals.

9. The Samsung RFQs requested bids for the delivery of cargo to (i) North American

ports (“Container Yard” or “CY” delivery rates)(also denoted as “Y-Y”) and also to (ii) certain inland locations in the United States designated by SEA or Samsung (“store door” or “SDD” delivery rates)(also denoted as “Y-D”).

10. For SDD movements, Samsung’s RFQ required bidders, including OOCL, to propose rates and charges using drayage truckers selected by SEA for the movement of cargo to the final destination (“door”), which could have been SEA’s own warehouse or SEA’s customer’s warehouse or other location.

11. Both of the Samsung RFQs provided under paragraph 6, captioned “Customer Service”, as follows:

“Preferred Trucker & Delivery

- Carriers are required to provide local delivery service with consignee’s preferred trucker if any. (CNT = Customer Nominated Trucker)”

12. Following Samsung’s acceptance of bids submitted by OOCL in response to the Samsung RFQs, Samsung executed Service Contracts Nos. PE213002 and PE223002 (collectively, the “Service Contracts”) which were filed with Federal Maritime Commission.

13. Paragraph 2 of the Service Contracts, captioned “SHIPPER AND AFFILIATES CLAUSES”, states that the Service Contracts shall be binding between the Carrier (OOCL) and the Shipper (Samsung), and the Affiliates of the Shipper that are listed in Appendix B of the Service Contracts.

14. Pursuant to Paragraph 2 of the Service Contracts, Samsung represented and warranted that the person executing the Service Contracts had the authority to enter into the Service Contracts on behalf of Samsung and the Affiliates listed in Appendix B.

15. Pursuant to Paragraph 2 of the Service Contracts, Samsung represented and warranted that each of the Affiliates listed in Appendix B was an entity controlled by

Samsung.

16. The Complainant/Counter-Respondent, SEA, is named as an Affiliate of Samsung on Appendix B to the Service Contracts, in addition to other entities.

17. Samsung had the authority to enter into the Service Contracts on behalf of Complainant/Counter-Respondent, SEA.

18. The Complainant/Counter-Respondent, SEA, is an entity that is controlled by Samsung.

19. Complainant/Counter-Respondent, SEA, is contractually bound to the terms and conditions of the Service Contracts.

20. Pursuant to the Service Contracts, Samsung instructed OOCL to issue non-negotiable bills of lading or seaway bills showing the Complainant/Counter-Respondent, SEA as consignee.

21. Pursuant to service under the Service Contracts, Samsung instructed OOCL to reflect SEA as consignee on the sea waybills or bills of lading OOCL issued to Samsung.

22. Appendix A of the Service Contracts included Notes outlining additional terms applicable to equipment and chassis free time, as well as the lump sum cost limits OOCL would pay for CNTs specified by SEA or Samsung.

23. Pursuant to service under the Service Contracts, OOCL was instructed to issue invoices for charges incurred in the United States to and collect payments for such payments from the Complainant/Counter-Respondent, SEA. As the Shipper Party to the Service Contracts, Samsung remained ultimately liable for all charges under the Service Contracts.

24. Complainant/Counter-Respondent, SEA is bound by the terms and

conditions of the Service Contracts.

25. SEA and Samsung agreed, pursuant to Paragraph 16 of the Service Contracts, that they shall be jointly and severally liable for performance of the terms and conditions of the Service Contracts, including the payment of all rates and charges.

26. Pursuant to Paragraph 1 of the Service Contracts, SEA and Samsung agreed that all cargoes moving under the Service Contracts shall be subject to the tariffs listed in Appendix A of each Service Contract.

27. In consideration of the representations made by SEA and Samsung, OOCL was induced to agree to terms and conditions that were favorable to both SEA and Samsung, , including OOCL's agreement to provide favorable freight rates, extended free time, and other terms, which OOCL would not have otherwise agreed to.

28. Appendix A of the Service Contracts incorporated by reference Tariff Rule OOLL-100.

29. Tariff Rule OOLL-100 Rule Number: T-26, published on January 2, 2020 and effective on February 1, 2020 through the relevant period covered by SEA's claims, states the following with respect to Customer Nominated Truckers ("CNT"): "...when a customer nominated trucker (CNT) is used for store door delivery for inbound shipment (or door pick up for outbound shipment) at the request of Shipper (or any other entity with an interest in the cargo), it is hereby agreed that the following terms and conditions shall apply:

- Carrier will act as agent of Shipper for purposes of arranging the trucking, and the contract of carriage for inland door delivery transportation shall be deemed to be between the trucker and Shipper or the owner of the cargo. The CNT will be employed by the Shipper or the owner of the cargo, not Carrier, even though Carrier's rates are inclusive of door delivery. Carrier shall pay the CNT only as agent for Shipper."

30. SEA and Samsung knew or should have known from the above provisions,

under the Service Contracts and the tariffs incorporated therein, that Samsung (shipper) and SEA (owner of the cargo) were responsible for detention and demurrage charges, unless the charges resulted directly from delays that were the fault of OOCL.

31. Notwithstanding this knowledge, SEA and Samsung concealed their position, both during the negotiation and execution of the Service Contracts and during the implementation of the Service Contracts that the Service Contracts/tariff did not assign responsibility to SEA and Samsung for delay fees not the fault of OOCL.

32. Upon information and belief, SEA and Samsung acted together to induce OOCL to enter into Service Contracts with terms, rates and charges more favorable than those generally available to the shipping public.

33. Samsung and SEA's concealment of their rejection of the specific terms they negotiated caused OOCL to offer rates and other favorable terms that it would not have otherwise offered had it known that Samsung and SEA disagreed with, and would not honor, the terms of the Service Contracts regarding responsibility for delays.

34. OOCL routinely sent, SEA (and through SEA, Samsung) Open Per Diem Invoice Statements, Statements of Account, and other communications listing outstanding charges accrued in the United States.

35. The Commission reviewed OOCL's demurrage and detention dispute process, which was in place at all relevant times, pursuant to its VOCC Audit Program, and the FMC informed OOCL that the process met the Commission's "best practices.

36. SEA, as well as Samsung, was fully aware and could have challenged the accuracy of those charges at any time, including for Samsung before the invoice was sent to SEA, but it did not do so.

B. SEA's Claim for Reimbursement of Demurrage, Detention & Other Charges

37. On October 7, 2022, SEA transmitted a letter to OOCL (USA) Inc. (we assume as agent for OOCL), captioned "NOTICE OF DEMAND FOR ACTION" ("Demand"). In that Demand, SEA asserted, *inter alia*: (i) that it had been coerced to pay invoices assessing "demurrage, detention, handling and/or storage fees" ("Fees") since 2020 in the amount of USD \$11 million "based on available data...as of Q1 2022," (ii) demanded an immediate refund of these Fees, plus all Fees it pays in the future, on the grounds that the shipments moved under "store-door" terms, and (iii) that such "Fees should not have been charged to [SEA] for transporting Samsung's containers to the designated inland locations" because "OOCL was responsible for obtaining all necessary resources therefor under the store-door terms."

38. SEA's Demand did not identify the bill of lading numbers, container numbers, booking numbers or individual charges related to the corresponding bills of lading and containers; did not produce any documents, communications or information explaining why the charges were incorrect and should be refunded, waived or reduced; and, instead, claimed that all the charges comprising the \$11 million claim were improper because SEA's shipments moved on a "store-door" basis.

39. OOCL, through OOCL (USA) Inc., responded to SEA's Demand noting that, based upon the sparse information about the claim that SEA had provided, the charges for demurrage had been incurred because shipments had been left at the terminal past the expiration of free time while awaiting pickup by SEA's CNT (customer nominated trucker); that OOCL had issued multiple and timely notifications to SEA regarding the date of arrival, last free day and accrued demurrage charges for SEA's shipments; that OOCL had issued "long-dwelling letters" to SEA seeking to obtain its instructions with respect to these containers; and that SEA

had not substantively responded to these communications.

40. As to the Demand's claim for reimbursement of detention charges, which were incurred due to SEA's failure to return empty containers prior to the expiration of free time, OOCL (USA) Inc. noted that it had not received any notices, documents or other information from SEA which described extenuating circumstances that impacted SEA's ability to timely return OOCL's containers, such as unavailability of appointments, return facility closures or other matters outside the control of SEA that might warrant mitigation of the detention charges that were assessed.

41. Despite SEA's failure to challenge invoices in a proper and timely manner through OOCL's dispute resolution process, OOCL (USA) Inc. advised SEA that OOCL would nevertheless review any documentation or information SEA provided which would "cast light on any conditions that prevailed at the time these charges were incurred...and reach a mutually satisfactory conclusion."

42. Other than a one-page PDF that was attached to the Demand, which summarized SEA's claims, none of the documents or information requested by OOCL (USA) Inc. to enable it to identify the shipments which comprised SEA's claim or further evaluate the circumstances which gave rise to the individual demurrage and detention charges that were assessed, has been provided by SEA.

43. Following further exchanges of letters between SEA and OOCL/OOCL (USA) Inc. and their respective counsel, and a meeting between OOCL (USA) Inc. and SEA at SEA's offices in New Jersey, the Complaint which is the subject of this proceeding was filed by SEA.

II. VIOLATION OF THE SHIPPING ACT BY SEA

A. Violation of 46 U.S.C. § 41102(a)

44. Counter-Complainant OOCL repeats and realleges the foregoing allegations.

45. Section 41102(a) of the Shipping Act, 46 U.S.C. § 41102(a), prohibits a person from “knowingly and willfully, directly or indirectly, by means of false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means, obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply.”

46. SEA and Samsung required as a condition of negotiating/executing the Service Contracts that all trucking of cargo transported by OOCL under the Service Contracts be performed by CNTs designated by SEA.

47. Pursuant to the terms and conditions of Tariff Rule OOLL-100 Rule Number: T-26, OOCL acted as an agent for SEA for purposes of arranging the trucking of containerized shipments transported by OOCL under the Service Contracts.

48. Pursuant to the terms and conditions of Tariff Rule OOLL-100 Rule Number: T-26, the contract of carriage for inland door delivery of shipments transported by OOCL under the Service Contracts was deemed to be between the SEA Customer Nominated Trucker and SEA as the owner of the cargo.

49. Pursuant to the terms and conditions of Tariff Rule OOLL-100 Rule Number: T-26, the CNTs were employed by SEA as the owner of the cargo, and not by OOCL, and OOCL’s sole responsibility was the payment to the CNT of freight charges that were included in the through freight rates which it had negotiated with Samsung for its store door delivery service under the Service Contracts.

50. Pursuant to the terms and conditions of Tariff Rule OOLL-100 Rule Number: T-

26, OOCL paid the CNTs designated by SEA only as agent for the Shipper, i.e., SEA and Samsung and such payments by OOCL to SEA's CNTs were limited to the amounts set forth in the Service Contracts.

51. Except for OOCL's obligation to pay CNTs the freight charges agreed upon by OOCL for the inland delivery of containerized shipments transported under the Service Contracts, OOCL was not responsible for the failure to perform by the CNTs, nor was OOCL responsible for failures to perform by SEA/Samsung including but not limited to acts or omissions by SEA which resulted in SEA's incurring of detention, demurrage and storage charges at ocean terminals, rail terminals, or other facilities.

52. Charges assessed to SEA for demurrage were incurred because shipments to SEA were left at marine terminals past the expiration of free time while awaiting pickup by the CNTs designated by SEA.

53. Every sea waybill issued by OOCL showing SEA as consignee included provisions making Samsung and SEA jointly and severally responsible for the timely return of empty containers and liable for any detention, demurrage, loss, or expense arising from non-return of OOCL's equipment.

54. Charges assessed by OOCL to SEA for demurrage at marine terminals were incurred because the CNTs selected and employed by SEA failed to timely pick up cargo at the terminals during free time or because SEA failed to timely issue instructions on the pick-up and delivery of the cargo.

55. The large majority of the charges (by dollar amount) for which SEA purports to seek reparations were assessed by third parties to SEA due to delays by SEA/its CNTs in removing SEA's cargo from rail yards and other third party container yards. OOCL played no

part in those charges.

56. SEA ignored multiple and timely notifications sent by OOCL to SEA regarding the date of arrival and last free day, resulting in the accrual of demurrage charges on SEA's cargo.

57. SEA was slow to respond to the numerous "long-dwelling letters" OOCL sent to SEA seeking to obtain its instructions with respect to containers which, after going into demurrage, continued to remain at the terminals.

58. Charges to SEA for detention were incurred due to the failure of SEA or its designated CNTs to timely return OOCL's empty containers prior to the expiration of free time and not due to any act or omission on the part of OOCL.

59. The Service Contracts provided for the assessment of demurrage, detention and related charges arising from the failure of SEA to timely take delivery of cargo and/or to timely return OOCL's empty containers within the extended detention free time periods which had been negotiated between SEA/Samsung and OOCL.

60. Upon information and belief, a substantial portion of the demurrage and detention charges assessed against SEA by OOCL were attributable to the failure of SEA's designated CNTs to perform in a timely manner. Under the terms of OOCL's tariff, incorporated into each of the Service Contracts, such failure was the responsibility of SEA, not OOCL.

61. Upon information and belief, a portion of the demurrage and detention charges assessed against SEA by OOCL were attributable to SEA's mismanagement of its supply chain including its failure or that of SEA's own customers to provide adequate warehouse facilities for the timely receipt and unloading of cargo.

62. In its adoption of the Incentive Principle the Commission asserted that fees reasonably imposed for delays caused by the failure of shippers and consignees (or their agents) to act in a timely manner serve to incentivize the regular flow of containerized cargo and the equipment by which such cargo is transported. Put simply, the intended purposes of demurrage and detention are to serve as “financial incentives to promote freight fluidity.” *Interpretive Rule on Demurrage and Detention Under the Shipping Act*, Notice of Proposed Rulemaking, 84 FR at 48852, 48855 (September 17, 2019).

63. As the D.C. Circuit has held, fees for delay also help compensate a carrier for use of its equipment.

64. By refusing to pay lawful invoices, demanding refunds and waivers of invoices, and obfuscating the details of its complaints, SEA is attempting to recoup the demurrage, detention and other costs that have been rightfully charged to and incurred by SEA from entities that were not legally responsible for the charges SEA incurred due to its own fault, acts and omissions.

65. By demanding refunds of charges properly imposed pursuant to the terms of the Service Contracts and tariff provisions to which SEA was bound, and by demanding that OOCL waive future lawful charges, SEA has knowingly and willfully employed an unjust or unfair device or means to obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply, all in violation of 46 U.S.C. §41102(a) of the Shipping Act.

66. Samsung sought and achieved freight rates for the transportation of its cargo lower than those that would otherwise have been applicable, and achieved extended free times and other financial benefits for SEA, by reason of the unjust and unfair device or means of

concealing its rejection of the clear provisions of the Service Contracts making SEA/Samsung expressly responsible for detention and demurrage charges resulting from the actions of SEA or its CNTs. Samsung and SEA continued this deception until after the Service Contracts expired and SEA/Samsung gained the benefits of their deceit, then demanding repayment of charges it had agreed to pay in the first place.

67. SEA has also sought and continues seeking lower rates or charges by demanding refunds of charges imposed on SEA pursuant to the terms of the Service Contracts, by refusing to pay lawful charges for its own failure to make timely pickup of cargo and timely return of OOCL equipment, and in demanding that OOCL waive future lawful charges. SEA, together with Samsung, has thus knowingly and willfully engaged in an unjust or unfair device or means to obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply, all in violation of 46 U.S.C. §41102(a) of the Shipping Act.

III. CAUSATION AND INJURY TO RESPONDENTS / COUNTER-COMPLAINANTS

68. OOCL repeats and realleges each of the allegations set forth above.

69. As a result of SEA's and Samsung's violation of 46 U.S.C. § 41102(a), OOCL has been exposed to damages, as nearly as the same can now be determined, in the amount of \$3,300,000 plus legal costs resulting from the proceeding filed against OOCL, and SEA is liable to OOCL for all these damages, including legal costs, that OOCL may incur.

IV. REQUEST FOR ORAL HEARING

70. Respondent/Counter-Complainants request a hearing on this matter, and further requests that the hearing be held at the Federal Maritime Commission, 800 N. Capitol Street, NW, Washington, D.C. 20573- 0001.

V. PRAYER FOR RELIEF

WHEREFORE, the Respondents/Counter-Complainants, Orient Overseas Container Line Ltd. and OOCL (Europe) Ltd., respectfully request that:

- 1) The Complainant/Counter-Respondent, SEA be required to answer the charges in this Counterclaim, and that after the Commission's investigation and hearing, that the Commission shall issue an order directing that SEA cease and desist from violating 46 U.S.C. § 41102 (a) of the Shipping Act, specifically from engaging in the unjust or unfair device or means it has employed to obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply;
- 2) SEA be required to pay for all damages incurred by OOCL as a result of its violations of the Shipping Act and Federal Maritime regulations as set forth in the Counterclaim; and,
- 3) Respondent/Counter-Complainant, OOCL be granted such other and further relief, including reasonable attorneys' fees and costs, that the FMC deems just and proper.

DATED: August 13, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

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VERIFICATION

I declare under penalty of perjury under the laws of the United States of America that the foregoing **Amended Counter-claim** is true and correct.

Signed: *Gavin Murdoch*

Name Gavin Murdoch

Title VP – Risk & Compliance

Date August 13, 2025

CERTIFICATE OF SERVICE

I certify that on the 13th day of August, 2025, a true and correct copy of the foregoing Amended Counterclaim was served by email on all counsel of record.

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